

Calendar Line 2

Case Name: *Orellana, et al. v. Prompt Food Service, Inc., et al.*
Case No.: 22CV401360

This is a class action in which Plaintiffs Francisco Duenas Orellana (“Duenas Orellana”) and Ronald Lopez Mendez (“Lopez Mendez”) allege defendant Prompt Food Service, Inc committed various wage and hour violations.²

Before the Court is the motion to be relieved as counsel by Mariam Nazaretyan (“Nazaretyan”) and Wilshire Law Firm, PLC (collectively, “Counsel”), who represent Plaintiff Lopez Mendez.³ The motion is unopposed. For reasons discussed below, the Court GRANTS the motion.

I. MOTION TO BE RELIEVED AS COUNSEL

A. Legal Standard

Motions to be relieved as counsel are technical and governed by Rules of Court, rule 3.1362 (“Rule 3.1362”). Notice and motion must be directed to the client on Judicial Council Form MC-051. No memorandum is required. (Rule 3.1362(a) & (b)). Counsel must provide a declaration on Judicial Council Form MC-052 stating “in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1).” (Rule 3.1362(c)).

The notice of motion and motion, the declaration, and the proposed order must be served on the client and all parties “by personal service, electronic service, or mail.” (Rule 3.1362(d)).

If the notice is served on the client by mail under Code of Civil Procedure section 1013, it must be accompanied by a declaration stating facts showing that either:

- (A) The service address is the current residence or business address of the client; or
- (B) The service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved.

(Rule 3.1362(d).)

The proposed order relieving counsel must be prepared on the Order Granting Attorney’s Motion to Be Relieved as Counsel—Civil (form MC-053) and must be lodged with the court with the moving papers. The order must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. If no hearing date is presently scheduled, the court may set one and specify the date in the order. After the order is signed, a copy of the signed

² Counsel uses “Ronaldo” as Plaintiff Lopez Mendez’s first name, however, the Complaint and Odyssey state “Ronald” as his first name. Thus, the Court will use the latter to avoid any confusion or inconsistencies with its records.

³ There is also a representative PAGA action between the parties (22CV403853) and Counsel has filed a motion to be relieved as counsel in that action as well.

order must be served on the client and on all parties that have appeared in the case. The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court.

(Rule 3.1362(e).)

B. Discussion

Nazaretyan submitted a declaration in support of Counsel's motion. She states that the motion is made pursuant to Rules of Professional Conduct Rule 1.16(b) and it is due to a breakdown in the attorney-client relationship with Plaintiff Lopez Mendez with respect to his individual claims. She further states that Counsel will continue to represent Plaintiff Duenas Orellana and aggrieved employees in the PAGA action.

With regard to service, Nazaretyan states that Plaintiff Lopez Mendez was served by mail at his last known address with copies of the motion papers along with the declaration. She confirmed within the past 30 days that the address is current by using a skip trace. The motion papers were mailed to the last known address with a return receipt requested and the documents were emailed to Plaintiff Lopez Mendez at his last known e-mail address. This is sufficient to meet the requirements of Rule 3.1362(d)(1)(A).

Counsel has provided a proposed order on the correct judicial counsel form (MC-053). The proposed order indicates that there is a case management conference ("CMC") on August 20, 2026 and the docket shows that there is a motion for approval of PAGA settlement and Counsel's motion to be relieved as counsel in the PAGA action. The Court's docket does not reflect any other scheduled hearing.

Based on the foregoing, Counsel's motion is GRANTED.

II. CONCLUSION

The motion to be relieved as counsel is GRANTED.

The Court will prepare the final order.

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Calendar Lines 3-4

Case Name: *Orellana, et al. v. Prompt Food Service, Inc., et al.*
Case No.: 22CV403853

This is a representative action under the Private Attorneys General Act (“PAGA Plaintiffs Francisco Duenas Orellana (“Duenas Orellana”) and Ronaldo Lopez Mendez (“Lopez Mendez”) allege defendant Prompt Food Service, Inc. (“Prompt”) committed various wage and hour violations.⁴

Before the Court is (1) Plaintiff Duenas Orellana’s motion for approval of PAGA settlement and (2) the motion to be relieved as counsel by Mariam Nazaretyan (“Nazaretyan”) and Wilshire Law Firm, PLC (collectively, “Counsel”), who represent Plaintiff Mendez. Both motions are unopposed.

For reasons discussed below, the Court GRANTS Counsel’s motion to be relieved as Counsel for Plaintiff Lopez Mendez and GRANTS Plaintiff Duenas Orellana’s motion for approval of PAGA settlement.

X. BACKGROUND

According to the allegations of the operative Complaint, Plaintiff Duenas Orellana worked for Defendant as an hourly-paid, non-exempt employee from November 2021 to April 2022. (Complaint, ¶ 8.) Plaintiff Lopez Mendez worked for Defendant as an hourly-paid, non-exempt employee from December 2021 to March 2022. (Complaint, ¶ 9.)

Defendant failed to: pay for all hours worked, including minimum and overtime wages; provide meal periods of compensation in lieu thereof; provide rest periods or compensation in lieu thereof; pay all earned wages twice a month; maintain accurate records; timely pay all wages at termination; furnish accurate itemized wage statements; and produce requested employment records.

On September 30, 2022, Plaintiffs initiated this action with the filing of the representative PAGA action.

XI. MOTION TO BE RELIEVED AS COUNSEL

C. Legal Standard

Motions to be relieved as counsel are technical and governed by Rules of Court, rule 3.1362 (“Rule 3.1362”). Notice and motion must be directed to the client on Judicial Council Form MC-051. No memorandum is required. (Rule 3.1362(a) & (b)). Counsel must provide a declaration on Judicial Council Form MC-052 stating “in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code

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